

SENATE BILL 1799

By Lamar

AN ACT to amend Tennessee Code Annotated, Title 4 and
Title 47, Chapter 18, relative to social media.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 47, Chapter 18, is amended by adding
the following as a new part:

47-18-3501.

As used in this part:

(1) "Account holder" means a person who has an account or profile to
use a social media company's platform;

(2) "Content":

(A) Means text, image, or video; and

(B) Does not include interactive gaming or educational
entertainment;

(3) "De-identified data" means data that cannot reasonably be linked to
an identified or identifiable natural person, or a device linked to that individual;

(4) "Interactive computer service":

(A) Means an information service, as defined in 47 U.S.C. § 153,
information system, or information access software that:

(i) Provides or enables access by multiple users to a
computer server; and

(ii) Provides access to the internet; and

(B) Includes an internet service, an internet system, a website, an
internet application, and an internet portal;

(5) "Person" means an individual or entity;

(6) "Personal information":

(A) Means information that is linked or reasonably linkable to an identified or identifiable natural person; and

(B) Does not include information that is:

(i) Publicly available information; or

(ii) De-identified data or aggregate consumer information;

(7) "Social media company" means a person that is an interactive computer service and that provides a social media platform;

(8) "Social media platform":

(A) Means a website or internet application that:

(i) Allows a person to create an account; and

(ii) Enables an account holder to communicate with other account holders and users through posts; and

(B) Does not include:

(i) A broadband internet access service, as defined in 47 CFR § 8.1(b);

(ii) An email service;

(iii) An internet service, internet application, or website:

(a) That consists primarily of content that is not generated by account holders, but rather is preselected by the service, application, or website provider; and

(b) For which interactive functionality is incidental to, directly related to, or dependent upon, the preselected content described in subdivision (8)(B)(iii)(a);

(iv) Online shopping, if the interaction with other account holders or users is predominantly limited to the ability to send, receive, request, or settle funds, comment on transactions, display goods for sale, engage as consumers about products and reviews, or post a wish list;

(v) An internet service, internet application, or website that primarily provides career development opportunities;

(vi) A cloud storage or cloud computing service;

(vii) An online service, application, or website in which interaction between users is predominately used for technical support, or limited to reviewing products offered for sale by electronic commerce or commenting on such reviews posted by other users; or

(viii) Peer-to-peer payment platforms, if the interaction with other users or account holders is generally limited to the ability to send, receive, or request funds and to like or comment on such transactions, or other functions that are focused on sending, receiving, requesting, or settling payments between users or account holders; and

(9) "User" means a person who consumes posts on a social media platform, but is not an account holder.

47-18-3502.

(a) If an account holder deletes the account holder's account on a social media platform, then the social media platform shall delete all personal information pertaining to

the deleted account or collected directly through the use of the social media platform through the deleted account by the account holder or another user.

(b) Subsection (a) does not limit or otherwise affect a social media platform's obligations under the Tennessee Information Protection Act (TIPA), compiled in part 33 of this chapter. If an account holder has not deleted the account holder's account but requests deletion of the account holder's personal information, then the social media platform shall comply with the requirements of TIPA, including under § 47-18-3304, to the extent such requirements apply to the social media platform.

47-18-3503.

A person who believes that a social media platform has violated § 47-18-3502 may bring a civil cause of action in a court of competent jurisdiction against the social media platform or social media company that provides the social media platform. A court that finds that a social media platform violated § 47-18-3502 may issue an injunction and award to the prevailing party:

- (1) Actual damages;
- (2) Punitive damages; and
- (3) Reasonable court costs and attorney fees.

SECTION 2. This act takes effect January 1, 2027, the public welfare requiring it, and applies to conduct occurring on or after that date.